



UGSSP Test : Week 5 Polity

PERFORMANCE

SOLUTIONS

Choose Section : Self Study Plan 2026 - 2

- All(50)
- Un-Attempt(10)
- Attempt(39)

Q.1

Consider the following statements about Judicial Review:
1. 'Judicial review' is explicitly stated in the Constitution.
2. 'Judicial review' was borrowed concept from Russia.
Which of the statement(s) given above is/are correct?

- 11 only
- 22 only
- 3Both 1 and 2
- 4Neither 1 nor 2

Solution

- Statement 1 is incorrect: Judicial Review: The phrase 'judicial review' is not explicitly provided in the Constitution. However, the judiciary draws the power of judicial review from various provisions of the Constitution (e.g., Articles 13, 32, 131, etc.).
 - Statement 2 is incorrect: The doctrine of judicial review originated and developed in the USA. It was propounded by John Marshall, the then chief justice of the American Supreme Court, for the first time in the famous case of Marbury V. Madison (1803)
- Thus, option (d) is the correct answer.

Your Answer: 4CORRECT || Marks: (+2,-0.67)|| On Screen: 01:18

Q.2

Which of the following are the essential aspects of natural justice:
1. Right to fair hearing.
2. Judges recuse themselves in case of vested interests.
3. Judgments given by the courts should be well-reasoned.
4. Judicial review of the laws.
5. Access to cheap justice.
How many of the statement(s) given above is/are correct?

- 1Only two
- 2Only three
- 3Only four
- 4All five

Solution

- Essential aspects of natural justice:
- Statement 1 is correct: Right to fair hearing. Audi Alteram Partem (Rule of Fair Hearing) In simple words, this rule states that both parties must have the chance to represent their viewpoints, and authorities should conduct a fair trial accordingly.

- Statement 2 is correct: Recusal: It is the act of abstaining from participation in an official action such as a legal proceeding due to a conflict of interest of the presiding court official or administrative officer. (Note: Judges recusing themselves in case of vested interests is a Natural Justice.)
- Statement 3 is correct: Judgments given by the courts should be well-reasoned. They ensure that the decision-making process, which affects any individual, adheres to certain minimum requirements and is fair.
 - o Presenting one's case must be given to an individual before condemning him to undesirable consequences. (Reasoned decisions must be given by any authority while proceeding against anyone. Reasoned decisions ensure that the decisions are not arbitrary and also facilitate judicial review of the decisions.
- Statement 4 and 5 are incorrect: Judicial review of the laws and access to cheap justice are not the part of natural justice. Thus, option (b) is the correct answer.

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:37

Q.3

[Which of the following is/are regarded as Criminal Contempt of Court?](#)

- [1. When Judicial acts are criticized in a newspaper even in a fair and reasonable way.](#)
 - [2. An act which interferes with due course of judicial proceedings.](#)
 - [3. Commenting on administrative side of Judiciary.](#)
 - [4. Innocent publication and discussion of matters of court.](#)
 - [5. Willful disobedience of any judgment of court.](#)
- [How many of the statement\(s\) given above is/are incorrect?](#)

1 Only two

2 Only three

3 Only four

4 All five

Solution

Contempt of court can be of two kinds:
➤ Civil, that is the willful disobedience of a court order or judgment or willful breach of an undertaking given to a court.
Criminal Contempt of court means publication of any matter which:
➤ Scandalises or tends to scandalise, or lowers or tends to lower the authority of, any court.
➤ Prejudices, or interferes or tends to interfere with the due course of any judicial proceeding.
➤ Interferes or tends to interfere with, or obstructs or tends to obstruct, the administration of justice in any other manner.

- Statement 1 is incorrect: Fair and reasonable criticism of judicial acts do not amount to Contempt of court.
- Statement 2 is correct: An act which interferes or prejudices with due course of judicial proceedings is regarded as Criminal Contempt of court.
- Statement 3 is incorrect: Commenting on administrative side of Judiciary do not amount to Contempt of court.
- Statement 4 is incorrect: Innocent publication and discussion of matters of court also don't come in the category of Contempt of court.
- Statement 5 is incorrect: Disobeying willfully any judgment of court comes in the category of Civil Contempt (not criminal) of court.

Thus, option (c) is the correct answer.

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:18

Q.4

[Consider the following statements:](#)

- [1. Motion to impeach a Judge of the Supreme Court cannot be rejected by the Speaker of the Lok Sabha as per the Judges \(Inquiry\) Act, 1968.](#)
 - [2. The Constitution of India defines and gives details of what Constitutes 'incapacity and proved misbehaviour' of the Judges of the Supreme Court of India.](#)
- [Which statements given above is/are incorrect?](#)

1 1 only

2 2 only

- 3

Both 1 and 2
- 4

Neither 1 nor 2

Solution

The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of the Supreme Court by the process of impeachment. The impeachment process according to is as follows:

- Statement 1 is incorrect: A removal motion signed by 100 members (in the case of Lok Sabha) or 50 members (in the case of Rajya Sabha) is to be given to the Speaker/Chairman. Speaker/Chairman may admit the motion or refuse to admit it.. If it is admitted, then the Speaker/Chairman is to constitute a three-member committee to investigate into the charges.
- Statement 2 is incorrect: The constitution nowhere defines the term "incapacity and proved misbehaviour".

Thus, option (c) is the correct answer.

Your Answer: 4

INCORRECT || Marks: (+2,-0.67)|| On Screen: 00:40

Q.5

[Consider the following statements with reference to public interest litigation \(PIL\) in India :](#)

[1. If a private factory in a city is causing pollution, then a PIL can be filed against the municipal authority of that city.](#)

[2. A PIL can be filed by any citizen in a magistrate's court.](#)

[3. A PIL will get rejected if it is found that the petition does not involve any public interest.](#)

[Select the correct code given below:](#)

- 1

1 and 3 only
- 2

1, and 2 only
- 3

2 and 3 only
- 4

1, 2 and 3

Solution

- Public interest litigation (PIL), an instrument through which judicial activism has flourished in India, refers to litigation undertaken to secure public interest and demonstrates the availability of justice to socially-disadvantaged parties.
- Introduced by Justice P. N. Bhagwati and Justice V.R. Krishna Iyer, it is a relaxation of the traditional rule of locus standi. In the 1980s, the Supreme Court began permitting cases on the grounds of PIL, which means that even people who are not directly involved in the case may bring matters of public interest to the court. It is the court's privilege to entertain the application for the PIL.
- Statement 1 is correct: A PIL may be filed against state government, central government, municipal authority. Also, a private person may be included in PIL as ‘Respondent’, after concerned of state authority. i.e. if a private factory in a city is causing pollution, then a PIL can be filed against the municipal authority of that city, state pollution control board including that private factory.
- Statement 2 is correct: Any citizen can file a public case by filing a petition:
 - Under Art 32 of the Indian Constitution, in the Supreme Court.
 - Under Art 226 of the Indian Constitution, in the High Court.
 - Under Sec. 133 of the Criminal Procedure Code, in a magistrate's court. The petitions concerning maintenance of wife, children and parents, can be filed under Sec. 125 of Cr. P.C. or a Suit in the Court of competent jurisdiction and for that purpose to approach the nearest Legal Aid Committee for legal aid and advice.
- Statement 3 is incorrect: If on scrutiny of a letter petition, it is found that the same is not covered under the PIL guidelines and no public interest is involved, then the same may be lodged only after the approval from the Registrar nominated by the CJI.

Thus, option (b) is the correct answer.

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:56

Q.6

[Consider the following statements:](#)

[Statement- I: The Supreme court of India is a court of record under the Indian constitution.](#)

[Statement- II: All the acts and proceedings of Supreme Court are kept on permanent record.](#)

- 1 Both Statement- I and Statement- II are correct and Statement- II is the correct explanation for Statement- I.
- 2 Both Statement- I and Statement- II are correct but Statement- II is not the correct explanation for Statement- I.
- 3 Statement- I is correct but Statement- II is not correct.
- 4 Statement- I is not correct but Statement- II is correct.

- Statement 1 is correct: As per Article 129 of the constitution, the Supreme Court is a 'Court of Record' which means that all judgements and orders made in the court are carefully recorded for perpetual memory and testimony
 - Statement 2 is correct: The judgements can be produced in any court as 'precedents'. Precedents act as guidelines for future verdicts. If a High court is faced with a case which has similar facts to one handled by the Supreme Court, it can take a look at the record. They are recognized as legal precedents and legal references.
- Thus, option (a) is the correct answer.

Your Answer: 1

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:30

Q.7

With reference to Supreme court of India, consider the following statements:

1. The original Constitution envisaged a Supreme court with a Chief Justice and five puisne Judges.
2. The rules for regulating the practice and procedure of Supreme court are made by Supreme court with the approval of President.
3. The jurisdiction of Supreme court may be enlarged by President in consultation with Chief justice of India.
How many of the statements given above are correct?

- ☒ 1 Only one
- ☐ 2 Only two
- ☐ 3 All three
- ☐ 4 None

- Statement 1 is incorrect: The original Constitution of 1950 envisaged a Supreme Court with a Chief Justice and 7 puisne Judges - leaving it to Parliament to increase this number.
 - As the work of the Court increased and arrears of cases began to cumulate, Parliament increased the number of Judges from 8 in 1950 to 34 in 2019.
 - Statement 2 is correct: Article 145(1) of the constitution states that "Subject to the provisions of any law made by Parliament, the Supreme Court may from time to time, with the approval of the President, make rules for regulating generally the practice and procedure of the Court." Supreme Court Rules, 1966 and Supreme Court Rules 2013 are framed under Article 145 of the Constitution to regulate the practice and procedure of the Supreme Court.
 - Statement 3 is incorrect: The jurisdiction of Supreme court may be enlarged by Parliament by law (Article 138). Parliament has the authority to pass legislation that can extend the types of cases or matters that the Supreme Court can handle, or even increase its powers in areas like appellate jurisdiction, advisory jurisdiction, and so on.
- Thus, option (a) is the correct answer.

Your Answer: 4

INCORRECT || Marks: (+2,-0.67)|| On Screen: 01:10

Q.8

According to Indian Constitution, consider the following statements with respect to Special Leave petitions:

1. It can be filed against judgments and orders of any High Court as well as tribunals in India.

2. [It cannot be filed if the High court refuses to grant a certificate of fitness for appeal under Article 134A to the Supreme Court.](#)
3. [It can be used to address constitutional issues and can involve both civil and criminal appeals.](#)
4. [Supreme Court cannot grant Special leave to any order passed by any court or tribunal constituted by law relating to Armed Forces](#)
[Select the correct code given below:](#)

- 1 1, 2 and 4
- 2 1, 2, 3, and 4
- 3 1, 3 and 4
- 4 1, 2 and 3

Solution

- Statement 1 is correct: Article 136 of the constitution deals with Special leave to appeal by the Supreme Court.
 - o It states that notwithstanding anything in this Chapter, the Supreme Court may, in its discretion, grant special leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter passed or made by any court or tribunal in the territory of India.
 - Statement 2 is incorrect: Article 136 applies to both final and intermediary orders. SLP can also be filed if the high court refuses to grant a certificate of fitness for appeal under Article 134A of the Indian Constitution to the Supreme Court of India.
 - Statement 3 is correct: The Supreme Court's power under Article 136 is discretionary, allowing it to grant special leave to appeal or refuse it based on the merits of each case. This power can be used to address constitutional or legal issues and can involve both civil and criminal appeals.
 - Statement 4 is correct: Article 136 (2) clearly states that, SLP shall not apply to any judgment, determination, sentence or order passed or made by any court or tribunal constituted by or under any law relating to the Armed Forces
- Thus, option (c) is the correct answer.

Your Answer: Not Answered UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:43

Q.9 [A judge of a High Court may resign from the office by writing to:](#) -

- 1 President of India
- 2 Chief Justice of India
- 3 Governor of the State
- 4 Chief Justice of the High Court

Solution

- The judges of a High Court are appointed by the President of India. The Chief Justice is appointed by the President after consultation with the Chief Justice of India and the Governor of the State concerned. For the appointment of other judges, the Chief Justice of the concerned High Court is also consulted.
 - o In the Third Judges case (1998), the Supreme Court opined that in case of the appointment of High Court judges, the Chief Justice of India should consult a collegium of two senior-most judges of the Supreme Court.
 - A High Court judge holds office until the age of 62 years. Any questions regarding their age are decided by the President after consultation with the Chief Justice of India and the President's decision is final.
 - A High Court judge can resign from office by writing to the President. A High Court judge can be removed from office by the President upon the recommendation of Parliament.
 - A High Court judge vacates his office upon being appointed as a judge of the Supreme Court or being transferred to another High Court.
- Thus, option (a) is the correct answer.

Your Answer: 1 CORRECT || Marks: (+2,-0.67)|| On Screen: 00:15

Consider the following statements:

- 1 only
- 2 only
- Both 1 and 2
- Neither 1 nor 2

- Articles 214 to 231 in Part VI of the Constitution deal with the organisation, independence, jurisdiction, powers, procedures and so on of the High Courts.
- The salaries, allowances, privileges, leave and pension of the judges of a High Court are determined from time to time by the Parliament. The High Court Judges (Salaries and Conditions of Service) Act, 1954 regulates the salaries and conditions of service of the judges of the High Courts. The Supreme Court Judges (Salaries and Conditions of Service) Act, 1958 regulates the salaries and conditions of service of the judges of the Supreme Court. So, statement 1 is correct.
- The salaries and allowances of the judges, the salaries, allowances and pensions of the staff as well as the administrative expenses of a High Court are charged on the Consolidated Fund of the State. Thus, they are non-votable by the State Legislature (though they can be discussed by it). It should be noted here that the pension of a High Court judge is charged on the Consolidated Fund of India and not the State. So, statement 2 is not correct.
- The salaries and allowances of the judges of a high court cannot be varied to their disadvantage after their appointment except during a Financial Emergency. Hence, a reduction in salaries and allowances of the judges of a high court is possible during the Financial Emergency.

Thus, option (a) is the correct answer.

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:53

Consider the following statements:

Which one of the following is correct in respect of the above statements?

- 1 Both Statement- I and Statement- II are correct and Statement- II is the correct explanation for Statement- I.
- 2 Both Statement- I and Statement- II are correct but Statement- II is not the correct explanation for Statement- I.
- 3 Statement- I is correct but Statement- II is not correct.
- 4 Statement- I is not correct but Statement- II is correct.

- Statement 1 is incorrect: There are 25 High Courts in India, six having control over more than one State/UT. Among Union territories Delhi and Union Territories of Jammu & Kashmir and Ladakh have a High Court of their own.
 - Some states share a common High Court. For example, Punjab and Haryana at Chandigarh; Four North Eastern states - Assam, Nagaland, Mizoram, and Arunachal Pradesh - at Guwahati.
- Statement 2 is correct: Article 214 of the constitution states that there shall be a High Court for each State.
 - For the purposes of this Constitution the High Court exercising jurisdiction in relation to any Province immediately before the commencement of this Constitution shall be deemed to be the High Court for the corresponding State.

Thus, option (d) is the correct answer.

Your Answer: 4

CORRECT || Marks: (+2,-0.67)|| On Screen: 01:03

Q.12

Consider the following statements with reference to the evolution of judiciary in India:

1. By the mid-19th century, Supreme Courts were established in all the presidencies in British India.

2. The Indian High Courts Act, 1861 abolished all the Supreme Courts that existed in British India at that period.

3. The Federal Court of India was created under the Government of India Act, 1935 as the highest appellate court for British India.

How many of the statements given are correct?

1 Only one

2 Only two

3 All three

4 None

Solution

- Statement 1 is correct: The promulgation of the Regulation Act of 1773 paved the way for establishment of the Supreme Court of Judicature at Calcutta as a Court of Record, with full power and authority to hear and determine all complaints under any existing law also to entertain, hear and determine any suit or action against any of the subjects in Bengal, Bihar and Orissa (now Odisha).
- Similarly, Supreme Courts were established at Madras and Bombay on 26 December 1800 and 8 December 1823, respectively. Therefore, by the mid-19th century, Supreme Courts were established in all the presidencies in British India.
- Statement 2 is correct: In the year 1857, after the revolt, the power from the East India Company was transferred to the British Crown leading to changes in the judicial system.
- The Indian High Courts Act, 1861 was enacted to create High Courts for various provinces and it abolished the Supreme Courts at Calcutta, Madras and Bombay
- Other changes Made by The Indian High Courts Act, 1861
 - o sadar adalats in presidency towns were abolished.
 - o High Courts were established in Allahabad, Bombay, Calcutta and Madras and subsequently in Lahore, Nagpur and Patna.
 - o Appeals against the judgment of the British-Indian Court lay to the Privy Council in Britain
 - o High courts were highest courts for all cases till the creation of the Federal Court of India under the Government of India Act 1935.
 - o Post 1935 Federal Court had the jurisdiction to solve disputes between provinces and federal states and hear appeals against judgement of the high courts.
- Statement 3 is incorrect: Although the Federal Court of India, created under the Government of India Act, 1935, began functioning from 1 October 1937, there was still a right of appeal to the Judicial Committee of the Privy Council in London from the Federal Court of India.
- The Judicial Committee of the Privy Council in London, served as the highest appellate court for several British colonies, including India.
- This dual appellate system, with the Federal Court within India and the Privy Council in London, was eventually abolished with the enactment of the Supreme Court of India in 1950.

Thus, option (b) is the correct answer.

Your Answer: 2

CORRECT || Marks: (+2,-0.67)|| On Screen: 01:15

Q.13

Consider the following states of India:

1. Nagaland

2. Meghalaya

3. Mizoram

How many of the above fulfill both conditions?

Condition-I: Part IX of the Constitution of India does not apply to this state.

Condition-II: It is not under the jurisdiction of a common High Court.

1 Only one

2 Only two

3 All three

4 None

Solution

- Only Meghalaya fulfills both these conditions: Part IX of the Constitution of India does not apply to Meghalaya; and it is not under the jurisdiction of a common High Court. Nagaland and Meghalaya both are the states where the Part IX of the Constitution of India does not apply. However, they have a common High Court. The Gauhati High Court is a common High Court for the states of Assam, Nagaland, Mizoram, and Arunachal Pradesh.
 - Part IX of the Indian Constitution relates to the Panchayats. It stipulates that in states or Union Territories with more than two million inhabitants there are three levels of Panchayati Raj Institutions:
 - the gram panchayats at village level
 - the panchayat samiti (block samiti, mandal parishad) at block level, and
 - the district council (district panchayat) at district level.
 - As per Article 243M of the Constitution, Part IX of the Constitution does not apply to:
 - Scheduled Areas and the tribal areas referred to in Article 244
 - The States of Nagaland, Meghalaya and Mizoram;
 - The hill areas in the State of Manipur for which District Councils exist under any law for the time being in force
 - As per Article 231 of the Constitution, Parliament may by law establish a common High Court for two or more States or for two or more States and a Union territory. At present, there are seven common High Courts in India:
 - Bombay High Court - Maharashtra, Dadra and Nagar. Haveli, Daman Diu, and Goa
 - Kolkata High Court - West Bengal, Andaman and Nicobar Islands
 - Madras High Court - Tamil Nadu, Pondicherry
 - Gauhati (Guwahati) High Court - Assam, Nagaland, Mizoram, and Arunachal Pradesh
 - Kerala High Court - Kerala and Lakshadweep
 - Punjab and Haryana High Court - Punjab, Haryana and Chandigarh
 - High Court of Jammu & Kashmir and Ladakh - Jammu and Kashmir and Ladakh
- Thus, option (a) is the correct answer.

Your Answer: 1

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:41

Q.14

[With reference to the ‘Gram Nyayalaya Act’, which of the following statements is/are correct?](#)

[1. As per the Act, Gram Nyayalayas can hear only civil cases and not criminal cases.](#)

[2. The Act allows local social activists as mediators/ conciliators.](#)

[Select the correct answer using the code given below.](#)

1 1 only

2 2 only

3 Both 1 and 2

4 Neither 1 nor 2

Solution

- Statement 1 is incorrect: Gram Nyayalayas are established under the Gram Nyayalayas Act, 2008 for speedy and easy access to justice system in the rural areas. The Act came into force from 2 October 2009.
 - o They can try criminal cases as well as civil suits, claims or disputes which are specified in the First Schedule and the Second Schedule of the Act.
 - Statement 2 is correct: The Act explicitly provides for mediation by social workers. The Gram Nyayalaya shall not be bound by the rules of evidence provided in the Indian Evidence Act, 1872 but shall be guided by the principles of natural justice and subject to any rule made by the High Court.
- Thus, option (b) is the correct answer.

Your Answer: 2

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:34

Q.15

Which of the statement(s) given above is/are correct?

- ② 2 only

Thus, option (b) is the correct answer.

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:34

Who/Which of the following is the custodian of the Constitution of India?

- ## 2 The Prime Minister of India

Thus, option (d) is the correct answer.

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:16

One High Court may have jurisdiction over two or more states if the following so decides

- ## 2 Parliament

4 The states involved

Solution

Article 231 provides that Parliament may by law establish a common High Court for two or more States or for two or more States and a Union territory.
For example

The Guwahati High Court has jurisdiction over Assam, Nagaland, Mizoram, and Arunachal Pradesh and the High Court of Hyderabad has jurisdiction over Andhra Pradesh and Telangana.
Thus, option (b) is the correct answer.

Your Answer: 2 CORRECT || Marks: (+2,-0.67)|| On Screen: 00:22

Q.18
Which of the following statements is/are correct regarding writ of ‘prohibition’?
1. It is an order issued by the Higher Court commanding Lower Court to cease from proceeding in some matters not within its jurisdiction.
2. This writ is available against a public officer even if he is not vested with judicial powers.
Select the correct answer using the codes given below.

- 1 1 only
- 2 2 only
- 3 Both 1 and 2
- 4 Neither 1 nor 2

Solution

Writ of prohibition is not available against a public officer not vested with judicial or quasi judicial powers.

The literal meaning of ‘Prohibition’ is ‘To forbid.’ A court that is higher in position issues a Prohibition writ against a court that is lower in position to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess. It directs inactivity.

Facts about Prohibition in India:
Writ of Prohibition can only be issued against judicial and quasi-judicial authorities.
It can’t be issued against administrative authorities, legislative bodies and private individuals or bodies.
Thus, option (a) is the correct answer.

Your Answer: 1 CORRECT || Marks: (+2,-0.67)|| On Screen: 00:54

Q.19
With reference to the various writs issued by Indian judiciary, consider the following statements:
1. Writ of Prohibition is issued when the court finds that a particular office holder is not doing his/her legal duty.
2. Writ of Mandamus is issued by higher court to lower court, when the lower court exceeds its jurisdiction.
Which of the given above statement(s) is/are correct?

- 1 1 only
- 2 2 only
- 3 Both 1 and 2
- 4 Neither 1 nor 2

Solution

Statement 2 is incorrect: Writ of Mandamus is issued when the court finds that a particular office holder is not doing his/her legal duty.
Statement 1 is incorrect: Writ of Prohibition is issued by higher court to lower court, when the lower court exceeds its jurisdiction.
Thus, option (d) is the correct answer.

Your Answer: 4

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:45

Q.20

Which one of the following statements is not correct regarding Certiorari?

- 1 A High Court can issue a writ against itself in its administrative capacity
- 2 A bench of a High Court can issue a writ to another bench of the same High Court
- 3 A High Court cannot issue a writ to another High Court
- 4 A High Court can issue certiorari to a tribunal situated within its jurisdiction

Solution

A bench of a High court is equal to the High court in all judicial powers. Hence a bench of the High court cannot issue certiorari against the order of another bench
Thus, option (b) is the correct answer.

Your Answer: 2

CORRECT || Marks: (+2,-0.67)|| On Screen: 01:41

Q.21

Which of the following are the main jurisdictions of the High Court of a State ?

1. Original jurisdiction
2. Appellate jurisdiction
3. Supervisory jurisdiction
4. Advisory jurisdiction
Choose the correct answer from the codes given below :

- 1 1, 2 and 3
- 2 2, 3 and 4
- 3 1, 3 and 4
- 4 1, 2 and 4

Solution

At present a high court enjoys the following jurisdiction and powers:

- Original Jurisdiction
- Appellate Jurisdiction
- Supervisory Jurisdiction
- Control over subordinate courts
- A court of record
- Power of judicial review

Thus, option (a) is the correct answer.

Your Answer: 1

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:32

Q.22

[Consider the following statements regarding the removal of the judge of the Supreme Court:](#)

- [1. He can be removed from his office by an order of the President.](#)
- [2. The President can issue the removal order only after an address by the Parliament has been presented to him, in any session for such removal.](#)
- [3. The address must be supported by a special majority of each House of the Parliament.](#)

[Which of the statement\(s\) given above is/are correct?](#)

- ☐ 1 only
- ☐ 2 1 and 2 only
- ☒ 3 1 and 3 only
- ☐ 4 1, 2 and 3

Solution

Statement 1 is correct. A judge of the Supreme Court can be removed from his Office by an order of the President. Statement 2 is incorrect. The President can issue the removal order of the judge of the Supreme Court only after an address by Parliament has been presented to him in the same session for such removal. Statement 3 is correct. The address must be supported by a special majority of each House of Parliament (that is, a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting). Thus, option (c) is the correct answer.

Your Answer: 3

CORRECT || Marks: (+2,-0.67)|| On Screen: 01:39

Q.23

[The exclusive original jurisdictions of the Supreme Court does not extend to:](#)

- [1. Inter-state water disputes](#)
- [2. Matters referred to the Finance Commission](#)
- [3. Adjustment of certain expenses between the Centre and the States](#)
- [4. Dispute between two or more states](#)
- [5. Disputes regarding election of the President and the Vice-President](#)

[Select the correct answer using the codes given below:](#)

- ☐ 1 1 and 2 only
- ☒ 2 1, 2 and 3 only
- ☐ 3 2, 3 and 5 only
- ☐ 4 1, 2, and 4 only

Solution

The exclusive original jurisdiction of the Supreme Court means that, no other court in India shall have the power to entertain any such suit on which only the Supreme Court can provide judgments. This jurisdiction of the Supreme Court does not extend to the following:

- A dispute arising out of any pre-Constitution treaty, agreement, covenant, engagement, sanad or other similar instrument.
- A dispute arising out of any treaty, agreement etc., which specifically provides that the said jurisdiction does not extend to such a dispute.
- Inter-state water disputes.
- Matters referred to the Finance Commission.
- Adjustment of certain expenses and pensions between the Centre and the states.
- Ordinary dispute of Commercial nature between the Centre and the states.
- Recovery of damages by a state against the Centre.

As a federal court, the Supreme Court decides the disputes between different units of the Indian Federation. Thus, the disputes between two or more states or the Centre and one or more states, comes under exclusive original jurisdiction of the Supreme Court.

Thus, option (b) is the correct answer.

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 01:01

Q.24

[Consider the following statements:](#)

- [1. There is no provision in the Constitution of India for the impeachment of a judge of the High Court or Supreme Court.](#)
- [2. The parliament is not empowered to discuss the conduct of any judge of the Supreme Court or a High Court and the protection in this regard is applied to his judicial duties as well as his private conduct.](#)

[Which of the Statements given above is/are correct?](#)

- 1 1 only
- 2 2 only
- 3 Both 1 and 2
- 4 Neither 1 nor 2

Solution

The parliament is not empowered to discuss the conduct of any judge of the Supreme Court, or a High Court but the protection of the judge in this regard is restricted to his official duties and does not apply to his private conduct. Thus, option (a) is the correct answer.

Your Answer: 4

INCORRECT || Marks: (+2,-0.67)|| On Screen: 01:03

Q.25

[Consider the following statements and select the correct answer from the codes given below :](#)

- [Assertion \(A\) : Judicial Review is a process to restrain the executive or the legislature from exercising power which may not be sanctioned by the Constitution.](#)
- [Reason \(R\) : The source of the power of judicial review is Article 13 of the Constitution.](#)

[Codes :](#)

- 1 Both A and R are individually true and R is the correct explanation of A
- 2 Both A and R are individually true but R is not the correct explanation of A
- 3 A is true but R is false
- 4 A is false but R is true

Solution

The Indian Constitution adopted the Judicial Review on lines of the U.S. Constitution. Parliament is not supreme under the Constitution of India. Its powers are limited in a manner that the power is divided between centre and states. Moreover the Supreme Court enjoys a position which entrusts it with the power of reviewing the legislative enactments both of Parliament and the State Legislatures. This grants the court a powerful instrument of judicial review under the constitution. Thus, option (b) is the correct answer.

Your Answer: 2

CORRECT || Marks: (+2,-0.67)|| On Screen: 01:06

Q.26

The framers of the Constitution borrowed the idea of judicial review from the Constitution of:-

1

United Kingdom

2

France

3

USA

4

Holland

Solution

USA: Judicial Review: The provision of Judicial Review gives the judiciary an upper hand in interpreting the Constitution. The judiciary can thus nullify any order by the legislature or executive if that order is in conflict with the Constitution of the country. Thus, option (c) is the correct answer.

Your Answer: 3CORRECT || Marks: (+2,-0.67)|| On Screen: 00:40

Q.27

The Supreme Court has held that the freedom of speech and expression through the medium of internet is an integral part of Article 19(1)A and accordingly, any restrictions on the same must be in accordance with Article 19(2) of the Indian Constitution. Accordingly, the state can restrict the said freedom on which of the following grounds?

1. Sovereignty and integrity of India
2. Security of the state
3. Friendly relations with foreign states
4. Public order
5. In relation to contempt of court
6. Incitement to an offence

Select the correct answer using the code given below:

1

1, 3 and 5 only

2

1, 2, 4 and 6 only

3

2, 4 and 6 only

4

1, 2, 3, 4, 5 and 6

Solution

The Supreme Court, in the case of Anuradha Bhasin v/s the Union of India, recognized that expression through the internet has gained contemporary relevance and is one of the major means of information diffusion. Therefore, the freedom of speech and expression through the medium of internet is an integral part of Article 19(1)A and accordingly, any restrictions on the same must be in accordance with Article 19(2) of the Constitution. Article 19(1)A - All citizens shall have the right to freedom of speech and expression. However, as per Article 19(2), with respect to the freedom of speech and expression, the state can impose reasonable restrictions on the grounds of - sovereignty and integrity of India, the security of the state, friendly relations with foreign states, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence. Thus, option (d) is the correct answer.

Your Answer: Not AnsweredUNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:30

Q.28

Which of the following statements are correct?

- 1. Habeas Corpus is a writ issued by the court to bring before the court a person from illegal custody.
- 2. By using the writ of Mandamus, the court may order the public officials to perform their legal duties.
- 3. By the writ of Quo Warranto, the court may strike off an order passed by any official of the government, local body or a statutory body.
- 4. Certiorari is a writ issued to a person who is authorized to occupy a public office to step down from that office.

Select the correct answer using the code given below:

1 1 and 2 only

2 2 and 4 only

3 1 and 3 only

4 1, 2 and 4 only

Solution

As the guardian of Fundamental Rights, the Supreme Court has the power to issue writs, such as Habeas Corpus, Quo Warranto, Prohibition, Certiorari and Mandamus.

Habeas Corpus is a writ issued by the court to bring before the court a person from illegal custody. The court can decide the legality of detention and release the person if detention is found to be illegal.

By using the writ of Mandamus, the court may order the public officials to perform their legal duties. Prohibition is a writ to prevent a court or a tribunal from doing something in excess of its authority.

By the writ of Certiorari, the court may strike off an order passed by any official of the government, local body or a statutory body. Quo Warranto is a writ issued to a person who is authorized to occupy a public office to step down from that office. In addition to issuing these writs, the Supreme Court is empowered to issue appropriate directions and orders to the executive.

Thus, option (a) is the correct answer.

Your Answer: 4 INCORRECT || Marks: (+2,-0.67)|| On Screen: 01:58

Q.29

Which of the following statements is/are correct?

- 1. Under the High Court, there is a hierarchy of courts which are referred to in the Indian constitution as subordinate courts.
- 2. The principal function of the District Court is to hear appeals from the subordinate courts.

Select the correct answer using the code given below:

1 1 only

2 2 only

3 Both 1 and 2

4 Neither 1 nor 2

Solution

Under the High Court, there is a hierarchy of courts which are referred to in the Indian constitution as subordinate courts. Since these courts have come into existence because of enactments by the state government, their nomenclature and designation differs from state to state.

The principal function of the District Court is to hear appeals from the subordinate courts. The Constitution ensures independence of subordinate judiciary. Appointments to the District Courts are made by the Governor in consultation with the High Court.

Thus, option (c) is the correct answer.

Your Answer: 1 INCORRECT || Marks: (+2,-0.67)|| On Screen: 02:00

Q.30

Which of the following statements regarding Judicial activism in India is/are correct?

- 1. It is defined in the constitution of India.
 - 2. It has strengthened the doctrine of separation of powers.
 - 3. It has enforced executive responsibility.
- Select the correct answer using the code given below.

☐ 1 only

☒ 2 3 only

☐ 3 1 and 2 only

☐ 4 2 and 3 only

Solution

The word Judicial activism is not defined in the constitution of India. The doctrine of judicial activism was introduced in the mid-1970s. Justice V.R. Krishna Iyer, Justice P.N. Bhagwati, Justice O. Chinnappa Reddy and Justice D.A Desai laid the foundations of judicial activism in the country. Hence statement 1 is not correct.

In recent years law making has assumed new dimensions through judicial activism of the courts. The judiciary has adopted a healthy trend of interpreting law in social context. Judicial activism describes judicial rulings suspected of being based on personal or political considerations rather than on existing law. Sometimes judges appear to exceed their power in deciding cases before the Court. They are supposed to exercise judgment in interpreting the law, according to the Constitution. Judicial activists, however, seem to exercise their will to make law in response to legal issues before the Court.

The question of judicial activism is closely related to constitutional interpretation, statutory construction and separation of powers. It is sometimes used as an antonym of judicial restraint. Judges should act more boldly when making decisions on cases:

- o Law should be interpreted and applied based on ongoing changes in conditions and values.
- o As society changes and their beliefs and values change, courts should then make decisions in cases that reflect those changes.
- According to the idea of judicial activism, judges should use their powers to correct injustices, especially when the other branches of government do not act to do so. In short, the courts should play an active role in shaping social policy on such issues as civil rights, protection of individual rights, political unfairness, and public morality.

One of the criticism that the judiciary faces is that, in the name of judicial activism, the theory of separation of powers is overthrown and the judiciary is undermining the authority of the legislature and the executive by encroaching upon the spheres reserved for them. Hence statement 2 is not correct. Judicial activism has had manifold impact on the political system.

- o It has democratised the judicial system by giving not just to individuals but also groups access to the courts.
- o It has enforced executive accountability. Hence statement 3 is correct.
- o However, on the other hand, it has overburdened the courts because of too many Public Interest Litigations being filed.

Thus, option (b) is the correct answer.

Your Answer: Not Answered

MARK FOR REVIEW || Marks: (+2,-0.67)|| On Screen: 02:08

Q.31

With reference to the Nominated Members of Rajya Sabha, consider the following statements:

- 1. Nominated members can vote in the election of the President and Vice- President of India.
- 2. Within six months nominated members can join a political party without any disqualification.
- 3. Nominated members of either house of the Parliament take part in the impeachment of the President.

Which of the statements given above are correct?

☐ 1 1 and 3 only

☒ 2 2 and 3 only

☐ 3 1 and 2 only

☐ 4 1, 2 and 3

Solution

Thus, option (b) is the correct answer.

CORRECT || Marks: (+2,-0.67)|| On Screen: 01:50

Which of the statements given above is/are correct?

- ☐ 1 2 only
☐ 2 2 and 3 only
☐ 3 1 and 3 only
☒ 4 None

The appointments of the judges are formally made by the President of India on the recommendation of the collegium and the proposals are processed through the Ministry of Law and Justice, Government of India. As no timeline is prescribed by

the Supreme Court in its judgments during which the central government is bound to clear the names of recommended persons as judges, this lacuna helps the central government to delay the judicial appointments if the government does not like such persons recommended by the collegium. The government cannot refuse to accept the recommendation of the collegium but it can certainly delay the appointment of the recommended person by delaying in clearing the names of recommended persons as judges. Hence statement 3 is not correct.

• Sometimes there is a lack of consensus in college resulting in stalemate. It leads to deadlock in collegium which delays in recommending names of persons to be appointed as judges. It leads to delay in appointment of judges. Recently it has been reported that the collegium, which is headed by CJI SA Bobde, has met at least three times in last one month to decide on names of judges for elevation to the apex court, but each time, it has been unable to decide on any name simply because of the lack of consensus. Hence statement 2 is not correct.
Thus, option (d) is the correct answer.

Your Answer: 4

CORRECT || Marks: (+2,-0.67)|| On Screen: 02:21

Q.33

Which of the following statements regarding the Supreme Court of India is not correct:-

- 1 It acts as the protector of the Directive Principles of State Policy.
- 2 It acts as the guardian of the Constitution.
- 3 It has final power to investigate disputes regarding election of the President and the Vice-President.
- 4 It acts as the guardian of the liberties of the people of India.

Solution

Article 37 explains in whole the nature of the DPSPs, “The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws”
Thus, option (a) is the correct answer.

Your Answer: 1

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:36

Q.34

The Rajya Sabha is a permanent house but:-

- 1 One half of its member retire after two years
- 2 One-half of its members retire after three years
- 3 One-third of its members retire every two years
- 4 One-fifth of its members retire every year

Solution

Rajya Sabha is a permanent body and also called a ‘continuing chamber.’ Unlike Lok Sabha which usually runs for 5 years and the fresh elections are taken up, Rajya Sabha has no specific tenure and it keeps on running. Therefore, it is never dissolved. Every second year, one-third of its members retire. For the vacant seats, fresh elections take place. However, nominations are taken up in the beginning of the third year. Representation of the People Act, 1951 authorizes the President to make provisions to govern the order of retirement of the members of the Rajya Sabha.
Thus, option (c) is the correct answer.

Your Answer: 3

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:24

Q.35

[The Rajya Sabha does not have a procedure for moving of:-](#)

[1.Adjournment motion](#)

[2.Censure motion](#)

[3.No-confidence motion](#)

[Select the correct answer code:](#)

1 1 and 3

2 2 only

3 All of the above

4 2 and 3

Solution

Statement 1 and Statement 2 are not possible because these are motions that censure the government, and Rajya Sabha does not enjoy this power.
A no-confidence motion is a parliamentary motion which is moved in the Lok Sabha against the entire council of ministers, stating that they are no longer deemed fit to hold positions of responsibility due to their inadequacy in some respect or their failure to carry out their obligations. No prior reason needs to be stated for its adoption in the Lok Sabha. Thus, option (c) is the correct answer.

Your Answer: 1

INCORRECT || Marks: (+2,-0.67)|| On Screen: 01:14

Q.36

[Which of the following is an outcome of judicial activism?](#)

[1. Judicial Review](#)

[2. Public Interest Litigation](#)

[Select the correct option from the codes given below:](#)

1 Only 1

2 Only 2

3 Both of them

4 None of them

Solution

Public Interest Litigation has been the result of judicial activism of the Supreme Court and its most popular form. It has been hailed as one of the most progressive steps of judiciary by civil society organizations and human rights activists. Thus, option (b) is the correct answer.

Your Answer: 2

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:44

Q.37

[What are the reasons given for the practice of judicial activism?](#)

1 Failure of Legislature and Executive to discharge their function

2 Citizens look up to the judiciary for the protection of their rights

4 All of the above

When the Legislature and the Executive fail to discharge their functions leading to the erosion of confidence in the Constitution, judiciary steps in to protect the rights and freedoms of citizens. Moreover, there are areas which have not been legislated upon leading to Legislative Vacuum that is filled by judiciary through judicial activism. Thus, option (d) is the correct answer.

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:30

Select the correct option from the codes given below:

4 Only 2 & 3

Kindly read the second statement again. Intervention of the higher courts on appeals against the lower courts is not judicial activism and it's one of their primary functions and duties.
Thus, option (c) is the correct answer.

CORRECT || Marks: (+2,-0.67)|| On Screen: 01:29

The above statements refer to which of the following theories?

4 Judicial Restraint

Solution

Judicial restraint limits the power of a judge to interpret law in a broad manner or strike down a legislation. Judicial Restraint is a theory of judicial interpretation that encourages judges to limit the exercise of their own power. Judicial activism and judicial restraint are facets of that uncourageous creativity and pragmatic wisdom.

In judicial activism, the judge takes more freedom to deviate from conventional interpretation, so that a law can be applied to a given set of facts. He can overrule laws as well as judgments. According to the philosophy of judicial restraint, there is no scope of interpretation of the Constitution, and changes can be made through amendments only.

In case of judicial activism, Constitution can be interpreted in a broad manner. According to the theory of judicial restraint, the judge must stick to the laws enacted by the legislature and should uphold them unless they are unconstitutional.

In judicial activism, the judge can interpret laws according to the changing needs of the society and prevent injustice. When the judiciary appears to have transgressed its jurisdiction, triggering a grave violation of the doctrine of separation of powers, the term “judicial overreach” is widely used. It is also commonly known as judicial adventurism. Thus, option (d) is the correct answer.

Your Answer: 1

INCORRECT || Marks: (+2,-0.67)|| On Screen: 01:42

Q.40

Consider the following statements about the jurisdiction to order arrest in contempt cases:
1. The power to order arrest is a punitive measure in contempt cases.
2. Subordinate courts can order the arrest of a person in a contempt case.
3. Contempt of Court may involve scandalising or lowering the authority of any court.
Which of the above statements are correct?

-

- 1 Only one
- 2 Only two
- 3 Only three
- 4 None

Solution

Statement 1 is correct: The power to order arrest in contempt cases is considered a punitive measure.

- Statement 2 is incorrect: Section 10 of the Contempt of Courts Act, 1971 specifically empowers the High Courts to punish contempt of subordinate courts
- Statement 3 is correct: Criminal contempt involves: scandalises or tends to scandalise, or lowers or tends to lower the authority of, any court.

Therefore, option (b) is the correct answer.

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:33

Q.41

Which of the following powers of the Supreme Court allows it to declare legislative and executive actions contrary to fundamental rights as void?

-

- 1 Original Jurisdiction
- 2 Appellate Jurisdiction
- 3 Writ Jurisdiction
- 4 Power of granted by the Article 13

Solution

The correct answer is (d) Article 13- Power of Judicial Review. The power of judicial review allows the Supreme Court to declare legislative and executive actions contrary to the Constitution and fundamental rights. Thus, option (d) is the correct answer.

Your Answer: 3

INCORRECT || Marks: (+2,-0.67)|| On Screen: 02:03

Q.42

Which of the following statements regarding the Supreme Court's advisory jurisdiction is correct?

- 1. The President is bound to accept the advice given by the Supreme Court.
 - 2. The Supreme Court may refuse to give its advice on questions of law or fact of public importance.
 - 3. This jurisdiction is limited to matters arising after the Constitution came into effect.
- How many of the above statements are correct?

1 Only one

2 Only two

3 All three

4 None

Solution

- Statement 1 is incorrect. The President is not bound to accept the advice given by the Supreme Court in its advisory jurisdiction.
 - Statement 2 is correct. The Supreme Court has the discretion to refuse to give its advice on questions of law or fact of public importance.
 - Statement 3 is incorrect. The advisory jurisdiction of the Supreme Court is not limited to matters arising after the Constitution came into effect. On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement, sanad or other similar instruments
- Thus, option (a) is the correct answer.

Your Answer: 2

INCORRECT || Marks: (+2,-0.67)|| On Screen: 02:13

Q.43

Consider the following statements:

- 1. The Chief Justice of a high court is appointed by the President after consulting with the Chief Justice of India and the Chief Minister of the state concerned.
 - 2. The President determines the strength of a high court, and the Constitution specifies the minimum and maximum number of judges for each high court.
- How many of the above statements are correct?

1 Only 1

2 Only 2

3 Both 1 and 2

4 None of the statements are correct.

Solution

- Statement 1 is Incorrect. The Chief Justice of a high court is appointed by the President after consulting with the Chief Justice of India and the Governor of the state concerned.
 - Statement 2 is incorrect. The Constitution does not specify the strength of a high court, and it is left to the discretion of the President. The President determines the strength based on the workload of the high court.
- Thus, option (d) is the correct answer.

Your Answer: 4

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:32

Q.44

Consider the following statements regarding the qualifications of a person to be appointed as a judge of a high court: -

1. The Constitution prescribes a minimum age for appointment as a judge of a high court.

2. A person can be appointed as a judge of a high court if they have been an advocate of a high court for ten years.

How many of the above statements are correct?

- 1

 Only 1 statement is correct
- 2

 Only 2 statements are correct
- 3

 Both statements are correct
- 4

 None of the statements are correct.

Solution

- Statement 1 is incorrect. The Constitution does not prescribe a minimum age for appointment as a judge of a high court.
- Statement 2 is correct . A person can be appointed as a judge of a high court if they have held a judicial office in the territory of India for ten years or have been an advocate of a high court (or high courts in succession) for ten years.

Thus, option (a) is the correct answer.

Your Answer: 1

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:24

Q.45

What is the minimum number of the judges to decide an issue involving the interpretation of the constitution or any Presidential reference? -

- 1

 5
- 2

 7
- 3

 10
- 4

 15

Solution

A division bench comprises 2-3 judges while constitution bench consists of at least five or more judges of the court. Such a bench is set up to decide substantial questions of law with regard to the interpretation of the constitution. The origin of constitution bench emanates from Article 143. When President of India seeks Supreme Court's opinion on a question of fact or law under Article 143 of the Constitution, then also a Constitution bench is set up.

Thus, option (a) is the correct answer.

Your Answer: 1

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:12

Q.46

The High Court which has the distinction of having the first woman Chief Justice is: -

- 1

 Guwahati High Court
- 2

 Allahabad High Court

4 Himachal Pradesh High Court

Justice Leila Seth (20 October 1930 – 5 May 2017) served as the first woman judge on the Delhi High Court and became the first woman to become Chief Justice of a state High Court (Himachal Pradesh High Court), on 5 August 1991. She was also the first woman to be designated as a senior counsel by the Supreme Court of India. Thus, option (d) is the correct answer.

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:22

How many of the above statements are correct?

④ None

- Statement 1 is correct. The reservation of seats for scs and sts in the state legislative assembly is based on population ratios.
- Statement 2 is incorrect. Originally, the reservation was to operate for ten years, and it has been extended until 2030 by 104th CAA.
- Statement 3 is incorrect. A member of SC or ST can contest not only a seat reserved for them but also a seat not reserved for them.

Thus, option (a) is the correct answer.

INCORRECT || Marks: (+2,-0.67)|| On Screen: 01:51

How many of the above statements are correct?

4 None

Solution

- Statement 1 is incorrect. A member may resign his seat by writing to the Chairman of the legislative council or Speaker of the legislative assembly.
 - Statement 2 is correct. A member can be expelled from the House for promoting enmity between different groups.
 - Statement 3 is correct. A person vacates his seat if his election is declared void by the court.
- Thus, option (b) is the correct answer.

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 01:39

Q.49

[With reference to Indian Polity, consider the following statements:](#)

- [1. The constitution has neither fixed the maximum nor the minimum strength of state legislative council.](#)
 - [2. The quorum to hold a meeting of a house of the state legislature is one-tenth or thirty members whichever is more.](#)
- [Which of the statements given above is/are correct?](#)

- ☐ 1 only
- ☐ 2 only
- ☐ 3 Both 1 and 2
- ☒ 4 Neither 1 nor 2

Solution

- The Legislative Council of a state is constituted as per Article 168 of Indian Constitution. Under Article 168, states can have either one or two Houses of legislature.
 - Strength of State legislative council: The maximum strength of the council is fixed at one-third of the total strength of the assembly and the minimum strength is fixed at 40. It means that the size of the council depends on the size of the assembly of the concerned state. So, statement 1 is not correct.
 - Quorum: The quorum to constitute a meeting of the Legislative Assembly shall be ten members or one tenth of the total number of members of the Legislative Assembly, whichever is greater. So, statement 2 is not correct.
- Thus, option (b) is the correct answer.

Your Answer: 4

CORRECT || Marks: (+2,-0.67)|| On Screen: 00:53

Q.50

[With reference to Special provisions for Delhi, consider the following statements:](#)

- [1. The legislative assembly empowered to legislate on any matter enumerated in the State list except for security of state.](#)
 - [2. In the case of difference of opinion between the L-G and the Chief Minister on any matter, the L-G shall act upon the collective advice of the council of Ministers.](#)
 - [3. The power to make laws and administer civil services in the national capital rests with the Lieutenant Governor.](#)
- [Which of the above statements are correct?](#)

- ☐ 1 1, 2 and 3
- ☐ 2 1 and 2 only
- ☐ 3 2 and 3 only
- ☒ 4 None

Solution

- Powers of legislative assembly: As per Article 239AA (3), the legislative assembly shall have power to make laws for the whole or any part of the NCTD in any matters enumerated in the State list or in the Concurrent list except on the subjects of police, public order, and land. So, statement 1 is not correct.
- Advice of President: There shall be a Council of Ministers consisting of not more than 10% of the total number of members in the Legislative Assembly, with the Chief Minister (CM) at the head to aid and advise the Lieutenant Governor. In the case of difference of opinion between the L-G and his Ministers on any matter, the L-G shall refer it to the President

● **Powers to administer civil services:** Recently the Supreme court held that the Delhi government has the power to make laws and administer civil services in the national capital. The court limited the role of the Lieutenant Governor (LG) over bureaucrats in the capital to three specific areas such as public order, police and land. So, statement 3 is not correct. Thus, option (d) is the correct answer.

UNATTEMPT || Marks: (+2,-0.67)|| On Screen: 00:00